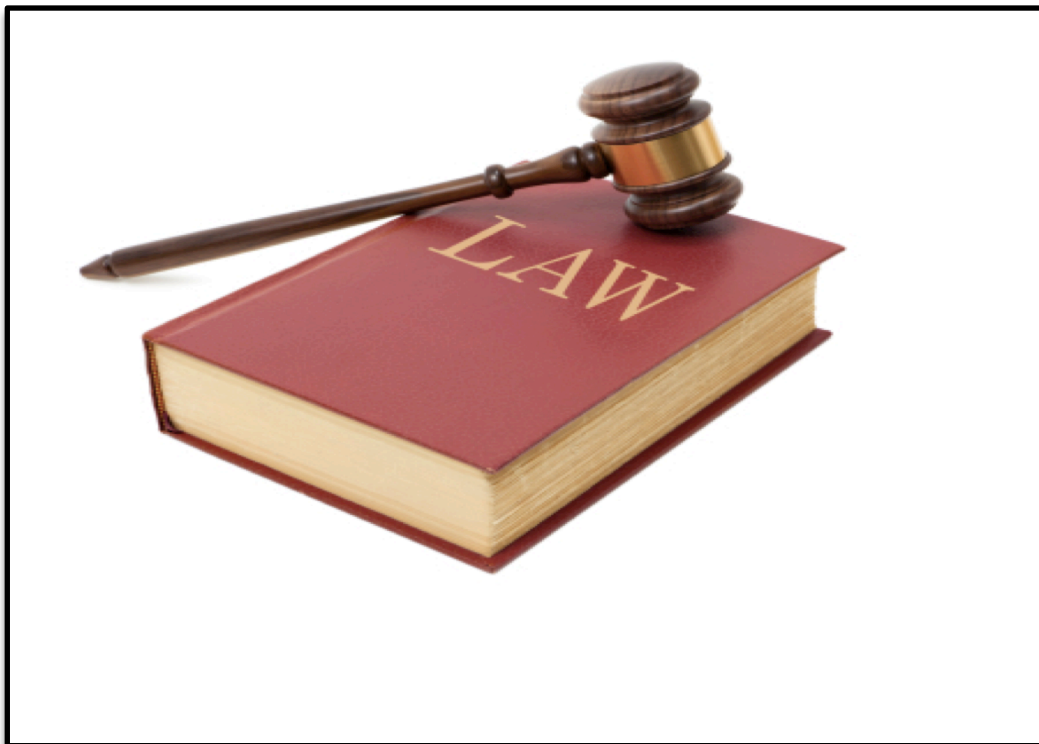


Legal issues

Unit 1

Asking for help



Legal issues: Unit 1 Asking for help

Contents

Unit 1 Asking for help: teachers' notes

Unit 1 Asking for help: answers

Unit 1 Asking for help: transcripts

Unit 1 Asking for help: classroom materials

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Overview

This resource is designed to help learners understand and use language to do with legal issues they might encounter.

Overview

This teachers' pack teaches the English language needed for understanding the legal system, making appeals and complaining in a polite way while in prison.

Unit 1 helps learners ask for help in prison and covers essential vocabulary;

Unit 2 introduces vocabulary and structures to do with making complaints in prison;

Unit 3 focuses on the court system.

Level: Entry level 1-3 / Scottish Access 2 – National 4 / CEFR A1 - B1

Also differentiation for lower and higher levels.

Structure, learning hours and delivery context

- The resource is divided into 3 units:
 - Unit 1 Legal issues
 - Unit 2 Making complaints
 - Unit 3 The court system
- The resources developed for each unit may be used independently or sequentially.
- It takes a whole language approach but focuses on making key language related to legal matters understandable in a prison context.
- Timings are flexible: teachers should adapt the resource to suit their learners and build in revision as required and can break down the units into smaller chunks of learning and build in revision as required.
- The resource is suitable for male and female offenders learning ESOL in prisons.

Unit 1: Asking for help

Introduction

This unit focuses on asking for help in prison with a particular focus on the legal context. It aims to give learners the language they need to understand the legal system particularly in terms of appeals. As most prisoners no longer have access to legal aid, learners will learn how to ask for help from their solicitors, but also others in the prison, for example the library, in order to understand how to form an appeal case with or without legal aid.

Time: 110 minutes plus extension work

Aims

- To have the language access legal support.
- To complain in a polite way.
- To gain an understanding of the UK legal system.
- To gain an understanding of the help available in the prison library.

Objectives

Learners will be able to:

- ask for help with their case
- understand answers to questions when asking for help
- understand essential legal vocabulary.

Higher level learners will be able to:

- ask for help in various contexts
- understand the answers to questions they have asked.

Tip! Find out about whether prisoners can get Legal Aid and also what support is available for appeals in your prison.

Tip! Check with your library what help they can provide for legal knowledge and support: photocopies, books, reference books, charitable organisations, etc.

Preparation

You will need:

- **Resource 1:** to display to learners.
- **Resource 2:** 1 copy folded in half. The top half (questions 1-4) are for lower level learners
- **Resource 3a and b:** 1 copy per learner. **3a** is for lower levels and **3b** is for stronger learners
- **Resource 4:** 1 copy cut up between 2 or 3 learners
- **Resource 5:** 1 copy cut up between 2 or 3 learners
- **Audio 1 and 2**
- Transcript for audio 1: 1 copy per learner if being used
- Dictionaries

- Leaflets and other resources available in your establishment

Procedure

Warmer (5 minutes)

- Show the pictures from **Resource 1** and elicit the topic of the lesson. Try to elicit relevant vocabulary: *arrest(ed)*; *court*; *sentence(ed)*; *appeal*; *solicitor*; *guilty*.
- If learners are comfortable doing so, get them to talk about their own experiences.

Activity 1 – Pre-teach essential vocabulary (20 minutes)

- To teach this new vocabulary, put them into groups of 6 and give each learner 1 of the words. Ask them to look up the word in the dictionary.

Tip! Show an extract of one of the words on a screen and look at the different sections of the entry: *word, type of word, pronunciation, definition, example*. Point out how you can tell the different sections and get learners to focus on the definition.

- Ask learners to explain their word to the rest of the group.
- Ask concept check questions to nominated learners such as in the table below to check learner understanding.

arrest	Who can arrest you? The police. Why do the police arrest you? Because they think you have broken the law e.g. stolen something or hurt someone. What can happen after you are arrested? Taken to a police station or kept in a police station.
Guilty	If you go to court and they say you have done something illegal e.g. stolen something, you are? Guilty. What can happen if they find you guilty? Go to prison.
Sentence	Is this words that go together? No. Is this the time you are sent to prison? Yes. How long can they send you to prison for? Lots of different times – 1 month to all your life. What are the longest sentences for? Killing someone. Who gives the sentence? The judge.
Court	Is this were tennis is played? No. Is this the place where they decide if you are guilty of a crime? Yes. Who is in charge? The judge.
solicitor	How does a solicitor help you? Understand the law and speak for you.

Where can a solicitor speak for you? In court.

What will he/ she say in court? Explain what happened and try to prove you aren't guilty.

Appeal If you are not guilty, what can you do when you do? Appeal.

How do you appeal? Ask the court to change their decision.

How do you do this? You (and your solicitor) give more information about your case to court.

- Finally drill the words.

Differentiation

Group learners together by level.

- Lower level learners: limit the number of vocabulary items to *guilty*, *sentence*, *court*, *appeal*. Work with the group to show them how to use the dictionary e.g. using alphabetical order, how to find the dictionary.
- Pre-entry: write very simple definitions for the words on cards and ask them to match to the meanings. Allow use of 1st language.
- Literacy learners: write simple definitions on cards and get learners to choral then pair read words and definitions then match them.

Tip! Use a simple learner dictionary to help you write simple definitions.

Activity 2 – Jaheed's story: Listening for gist and detail (15 minutes)

- Show the picture of Jaheed and elicit his story from the learners: say '*This is Jaheed. Where's he from? Why do you think he came to the UK? Where do you think he is now? What did he do/ How did he get here?*' Jaheed's story: he came to England for a better life, broke the law, was arrested and was sent to prison
- Group learners of a similar level together and tell them they are going to listen to Jaheed.
- Write on the board '*What happened to Jaheed?*' Play the audio and ask learners to answer the question. Accept answers such as '*break/ broke the law*' '*commit(ted) (a) crime*' '*got arrested*' '*went to prison.*'
- Show **Resource 2**, read question 1 and elicit the answer as a model.
- Hand out **Resource 2**, ask learners to answer questions 1 to 4. Play the recording up to 3 times. Ask learners to compare their answers before playing again.
- Ask the group the answers in turn ensuring all class members get an opportunity to speak. After learners give answers, play the recording again to check.

Differentiation/ extension

- Higher level learners to answer second set of questions (5-7) after 1st listening.
- Upon completion of the list, invite learners to the board, in turn, and write the information they have found and ask the rest of the class if they agree.
- Hand out a copy of the transcript and ask learners to find the verbs. Elicit what tenses are used.
- Writing practice: learners to write sentences to include the verbs elicited from the text. If they feel comfortable they could write about their own stories.

Activity 4 – Asking for help: listening for detail (10 minutes)

- Ask the class '*What could Jaheed do if he disagreed with the judge's decision?*' Appeal.
- If learners need it, remind them of the meaning of appeal.

Tip! A claimant can appeal if there is a reason for the offence that wasn't taken into consideration at the time or some evidence that was not used at the trial. If the appeal is successful the sentence may be changed or possibly dropped altogether.

- Ask '*Who should you speak to if you want to appeal?*' To elicit '*solicitor*'.
- Find out if any learners know what Legal Aid is. If not, explain.
- Tell learners they're going to listen to Jaheed again and ask '*Who is he phoning and why?*'
- Play the audio, ask learners to compare their answers then elicit the answer to the question.
- Now ask them to listen again and fill in the gaps then compare with their partner.
- Show the correct version on the board or have copies for learners to see.

Differentiation

Learners should be grouped with others of the same level. Use **Resource 3a** for lower and **3b** for higher level learners.

Activity 5 – Asking for help: role play (10 minutes)

- Focus on the pronunciation of the vocabulary and drill any difficult words by getting learners to repeat a few times.
- Put them in pairs to role play then ask them to swap parts.

Tip! Point out that this way of asking for help is useful in all contexts: library; wing; fellow inmates.

Differentiation

For more pronunciation practice split the class into 2 groups. 1 side is Jaheed and the other is the solicitor: learners should practise from 1 side of the room to the other. This is useful if learners are lacking in confidence.

Activity 4 – Help available in the library: specialist vocabulary (15 minutes)

- Explain that if they get legal aid the solicitor will do the work for them. If not, ask where they can get help from in the prison to get their appeal ready: the library.
- Discuss the help that they know is available from the library and give any information you have.
- Write relevant vocabulary on the board. examples: PSO; prisoner service orders, PAS; prisoner advice service, prisoners' handbook, NOMs; national offender management service, some libraries offer photocopying though some charge a varying amount.
- Hand out the flashcards from **Resource 4** for learners to match the service with the meaning.
- To check show **Resource 4** on the interactive whiteboard. Check understanding as appropriate.

Activity 5 – Appeal hearings: reading (15 minutes)

- Group learners with the same level. Display the first card of **Resource 5** to the group. Ask the learners what Jaheed wants to do.
- Hand a copy of cards out to the learners in pairs and ask the learners to put the process of appeal in the order they think it should be.
- Display the correct version or give a complete copy to learners to compare with their version.

Differentiation

- Tell them (or elicit) '**good grounds for appeal**' that means a good reason for appeal. Also explain that 'Form **NG**' means '**notice and grounds**' for an appeal.
- Lower level learners: read the wording on the cards with them. Use choral and pair reading. Finally work with them to put it in the correct level.

Activity 6 – Talking about the appeal process: sequencers (15 minutes)

- Get learners to look at **Resource 5** on the board. Look at cards 1 and 2 and say '*You come to prison and you want to appeal your sentence. **Then** you have 28 days to appeal.*' As you speak emphasise the use of then.
- Hold up or point to the next card and say '*And then?*' Elicit a response from the learners about speaking to a lawyer. Encourage learners to use *then*, *and then* or *after that*. Hold up the next card and continue helping the learners describe the process.
- Put the learners into pairs or threes. Ask them to describe the process, taking it in turns to say a step, looking at the flashcards (or display **Resource 5** on the interactive whiteboard).

Cooler – Talking about the appeal process: game (5-10 minutes)

- Put the learners into 2 mixed level groups and ask each group to talk through the steps without the aid of pictures. If necessary, show the appeal process cards again for a few minutes.
- Next ask them to write the steps as a team.
- Now divide the board in half and ask learners from both groups to write the steps on the board. 1 learner from each group should write at the same time. When they finish 1 line, another member of the team should come up.
- The learners watching should check that the order, spelling, grammar and punctuation their team member writes is correct.
- The team get 10 points for getting all the steps correct and 10 points for having them in the correct order.
- Deduct points for spelling, grammar and punctuation errors.
- They can gain extra points for including the use of: *then, and then, after that*.

Extension activities

- Make a poster explaining how to ask for help.
- Write a letter to a solicitor asking for help with their case (see **Inside Time** lesson plan for more help with this).
- Give learners other scenarios where they may need to ask for help and get them to role play those e.g. telling a wing officer about a problem in their cell.
- Organise a library visit and ask learners prepare a question to ask the librarian.

Answers – Resource 1

1. Why did Jaheed feel sad? Because he'd been arrested.
2. Did Jaheed speak English well? No.
3. How long was Jaheed sentenced for? 5 years.
4. Who did Jaheed write to when he was in prison? His wife.
5. Why did Jaheed come to the UK? To have a better life.
6. What did Jaheed's solicitor say to him? Answer all the questions they ask.
7. Why does Jaheed say he committed the crime? Because he met some bad people.

Resource 3a and b Listening

Jaheed	Hello, it's Jaheed. I need some help.
Solicitor	Hello Jaheed, what's the problem?
Jaheed	Can I appeal my case?
Solicitor	I've looked at your case and I think you can.
Jaheed	How do I appeal?
Solicitor	Can you pay your legal expenses?
Jaheed	No, I don't have any money so I'll need legal aid.
Solicitor	I'll put in an application for you and let you know what happens in a few weeks.
Jaheed	Ok, thanks. Goodbye.
Solicitor	Bye.

Transcript – Jaheed's story

When the police arrested me I felt very sad. I left my country for a better life for me and my family. I never meant to break the law.

I was kept in a police station for a long time before my solicitor arrived. She told me to give the police as much information as possible. The police got an interpreter for me because they knew I didn't speak much English.

I explained that I'd met bad people, and because of them I broke the law.

When I was in court, the Judge said I was guilty of the crime and sentenced me to 5 years in prison.

It was very hard to write to my wife and tell her I was in prison.

Transcript – Jaheed's story

When the police arrested me I felt very sad. I left my country for a better life for me and my family. I never meant to break the law.

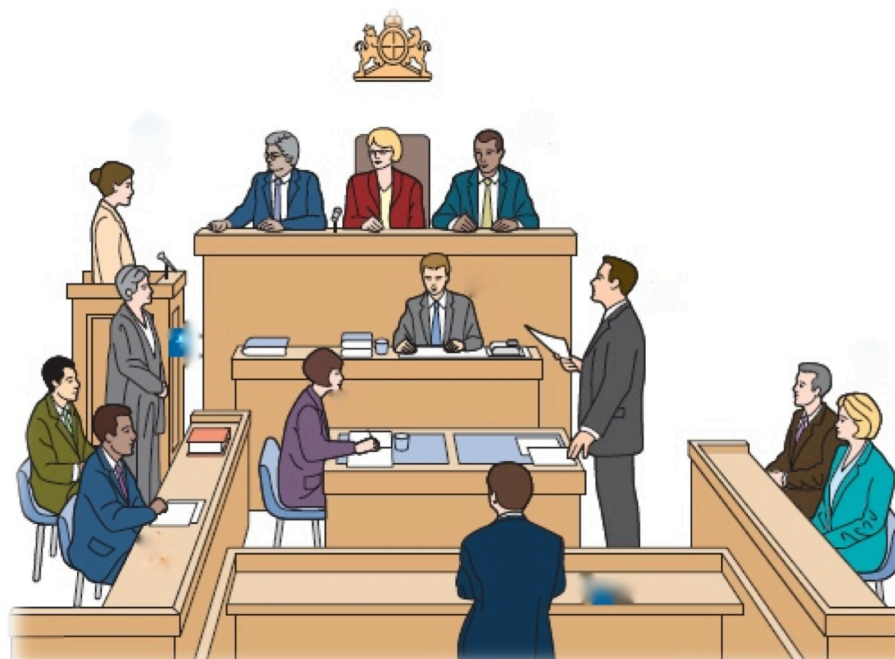
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Resource 1



Resource 2

Jaheed's Story



1. Why did Jaheed feel sad?
2. Did Jaheed speak English well?
3. How long was Jaheed sentenced for?
4. Who did Jaheed write to when he was in prison?



-
5. Why did Jaheed come to the UK?
 6. What did Jaheed's solicitor say to him?
 7. Why does Jaheed say he committed the crime?

Resource 3a Listening

Jaheed Hello, it's Jaheed. I _____ some help.

Solicitor Hello Jaheed, what's the problem?

Jaheed _____ I appeal my case?

Solicitor I've looked at your case and I think you can.

Jaheed _____ do I appeal?

Solicitor Can you pay your legal expenses?

Jaheed No, I _____ any money so I'll need legal aid.

Solicitor I'll put in an application for you and let you know what happens in a few weeks.

Jaheed Ok, thanks. Goodbye.

Solicitor Bye.

Resource 3b Listening

Jaheed Hello, it's Jaheed. I _____ some _____.

Solicitor Hello Jaheed, what's the problem?

Jaheed _____ I _____ my case?

Solicitor I've looked at your case and I think you can.

Jaheed _____ do I _____?

Solicitor Can you pay your legal expenses?

Jaheed No, I _____ any money so _____ legal aid.

Solicitor I'll put in an application for you and let you know what happens in a few weeks.

Jaheed _____.

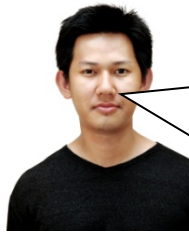
Solicitor Bye.

Resource 4 ✂

photocopies	copies of pages from books or magazines
reference only	you can not take out of the library, but you can read and get photocopies
Prisoner Advice Service	charitable organisation, helping with appeals
Prisoners handbook	book all prisoners get with important information about life in prison
Archbold law	legal book to help you with your case notes: reference only so ask for photocopies
PSI	Prisoner Service Instructions: instructions for running the prison
PSO	Prison Service Orders: rules for prisons
NOMS	National Offender Service: the organisation that runs prisons
<i>Add your own ideas here</i>	<i>Add your own ideas here</i>
<i>Add your own ideas here</i>	<i>Add your own ideas here</i>
<i>Add your own ideas here</i>	<i>Add your own ideas here</i>
<i>Add your own ideas here</i>	<i>Add your own ideas here</i>

Resource 5 ✂

1



I want to
appeal my
sentence.

Saheed

28 days

Ask a solicitor:
Are there **good**
grounds for an
appeal?



FOR OFFICIAL USE - CAO No. / / Form NG (SCPO)

NOTICE and GROUNDS of appeal or application for permission to appeal to THE COURT OF APPEAL CRIMINAL DIVISION in relation to a SERIOUS CRIME PREVENTION ORDER under s.24 of the Serious Crime Act 2007 (Criminal Procedure Rules, r 68.1(1)(f))

ON COMPLETION PLEASE SEND THIS FORM TO THE CROWN COURT WHERE SENTENCED

Please ensure that you have read the notes for guidance attached before completing this form. Write in **BLACK INK** and use **BLOCK CAPITALS**

If the appellant is not the subject of the order (i) give own details in left hand column (ii) provide details of the name of the person subject of the order and date of birth and, if known, other prison details.

The Appellant

Surname _____ Prison Index No _____

Forenames _____ Prison _____

Yes? Fill in form NG

Person subject of the Order / Application (if not the appellant) _____



If the judge decides, 'No',
you can disagree and try
again.



If the judge decides, 'Yes'...



....your solicitor
prepares the case
for court.



You can appeal 3 times